

S	E	R	V	E	D
May 4, 2017					
FEDERAL MARITIME COMMISSION					

FEDERAL MARITIME COMMISSION

INFORMAL DOCKET NO. 1954(F)

TAYLORS RESOURCES, INC. (USA) d/b/a BRIDGEWATER LANDING, INC. (USA)

v.

mitsui o.s.k. lines, ltd.

ORDER TO SUPPLEMENT THE RECORD

The parties have filed their briefs on the issues. The briefs and the record raise issues that the parties should be given an opportunity to address. Therefore, it is hereby

ORDERED that on or before May 18, 2017, the parties supplement the record by responding under oath to the following questions and filing the requested documents. On or before May 25, 2017, each party may file a reply to the other parties' responses.

I. QUESTIONS FOR BOTH PARTIES.

A. Factual Predicate.

On January 19, 2013, Mitsui issued waybill No. 26005510205 for the shipment of container MOEU0108835 said to contain 32 pieces of plastic scraps identifying Bridgewater Landing, Inc., as the shipper; Tianjin Shanhai Jiafu Commercial Trade Co., Ltd., as the consignee; Jacksonville, FL, as the port of loading; and Xingang as the port of discharge and place of delivery. (MOL-001.) On February 22, 2013, Mitsui issued waybill No. 26005541206 for the shipment of container MOEU0717549 said to contain 51 pieces of plastic scraps identifying Bridgewater Landing, Inc., as the shipper; Tianjin Shanhai Jiafu Commercial Trade Co., Ltd., as the consignee; Jacksonville, FL, as the port of loading; and Xingang as the port of discharge and place of delivery. (MOL-097.)

On May 28, 2013 at 3:52 PM, Kerri Keith of Bridgewater sent an email to Toukta Phonharath of Mitsui in what appears to be the first of a series of emails with "Subject: 'long stay b/l

26005510205/26005541206.” (MOL-036.) These emails have been compiled into OALJ Exhibit Alpha, attached, with citations to the page of the exhibits submitted by Mitsui on September 12, 2016, with its answer on which the email is found.

According to the “long stay b/l 26005510205/26005541206” emails, on May 30, 2013, Bridgewater sent an email to Mitsui asking that “[b]oth containers are to be on the same B/L.” (Email dated May 30, 2013 at 2:59 PM from John Herbst to Tony Lucas.) The last email on this subject is from Tony Lucas of Mitsui to John Herbst of Bridgewater: “To MOL the only additional cost would be cntr detention: 26005510205: RMB37500; 26005541206: RMB12300.” (Email dated June 5, 2013 at 9:01 AM from Tony Lucas to John Herbst.) *See* OALJ Exhibit Alpha (attached).

B. Questions.

Both parties are ordered to respond to the following questions.

1. Do any other emails or other correspondence address the subject “long stay b/l 26005510205/26005541206”?
2. Did consignee Tianjin Shanhai Jiafu Commercial Trade Co., Ltd., take delivery of container MOEU0717549?
3. If the consignee did not take delivery of container MOEU0717549, were container MOEU0717549 and its contents transported to Hong Kong or elsewhere for disposal?
4. If not, what happened to container MOEU0717549?
5. If so, what were the circumstance of that transportation, including who arranged for and who paid for the transportation?
6. If container MOEU0717549 was transported to Hong Kong for disposal, why was it decided that container MOEU0108835 would not also be transported to Hong Kong as contemplated by the May 30, 2013 2:59 PM John Herbst email?
7. A table included in an email dated July 1, 2013, at 5:33 PM from Patricia Alfonso of Bridgewater to Tony Lucas of Mitsui states an “empty return date” of “27-Jun” for Mitsui waybill 26005541206. (MOL-058.) Describe the events that resulted in an empty return date of 27-Jun for Mitsui waybill 26005541206.

Attach all documents for any shipment *from* Xingang of container MOEU0717549 related to Mitsui waybill 26005541206 and disposition of the cargo.

II. QUESTIONS FOR MITSUI.

Mitsui is ordered to respond to the following questions and attach any supporting documents.

- A. When and how was consignee Tianjin Shanhai Jiafu Commercial Trade Co., Ltd., notified of the arrival of container MOEU0108835? Attach documentation.
- B. When and how was Bridgewater notified that container MOEU0108835 arrived in Xingang? Attach documentation.
- C. When and how was Bridgewater notified that the consignee had not taken delivery of container MOEU0108835? Attach documentation.
- D. **Free Time.**

Mitsui's Answer to Claim at 4 states:

[P]ursuant to the service contract (MOL-015) and Section 20 of MOL's bill of lading (MOL-011), which is incorporated into the service contract, the Merchant (which would in this case include the Complainant and the consignee) had thirty days to take delivery of the cargo, following the expiration of free time. In this case, the service contract (MOL-022) extended free time to the Merchant of fourteen free days. This gave the Merchant a total of forty-four days to take delivery. Because the cargo arrived March 12, 2013, the Merchant had until April 25, 2013 to take delivery.

(Answer to Amended Complaint at 4.)

Mitsui's Schedule of Fees states:

40HC [*sic*] arrived at the port on March 12, 2013 and stored for 718 days until February 28, 2015.

718 days from March 12, 2013, to February 28, 2015.

(MOL-112.)

Question: If Merchant had fourteen free days, why was Bridgewater charged for 718 days instead of 704 days?

III. QUESTIONS FOR BRIDGEWATER.

A. Factual Predicate.

On May 30, 2013, at 2:59 PM, John Herbst of Taylors Resources Inc. sent an email to Tony Lucas of Mitsui subject "long stay b/l 26005510205/26005541206" stating:

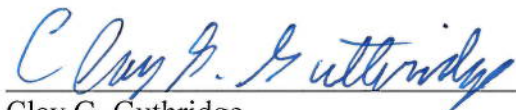
Thank you, over to Busan and then to Hong Kong would be good. Please confirm rate is US\$1180 Per 45 Ctr each, DTHC Cost US\$355 Total and Doc Fee US\$50.00. Both containers are to be on the same B/L. Please advise dollar amount of any other fees and total so we can arrange authorization.

(MOL-045.) On May 31, 2013, at 10:38 AM, Tony Lucas of Mitsui responded: "This covers freight cost, but there may be other costs related to demurrage I can check on that for you and try to keep this to a minimum to get it moving." (MOL-045.) On May 31, 2013, at 11:14 AM, John Herbst responded: "Thank you for all your great help, please come back to us with the other costs ASAP so we can get this thing moving." (MOL-050.) On June 5, 2013, Tony Lucas of Mitsui responded: "To MOL the only additional cost would be cntr detention: 26005510205:RMB37500; 26005541206:RMB12300." (MOL-050.)

B. Questions.

Bridgewater is ordered to respond to the following questions and attach any supporting documents.

1. Did Bridgewater ever "arrange authorization" for the shipment of container MOEU0108835 from Xingang to Hong Kong?
2. Did Bridgewater ever notify Mitsui of a consignee in Hong Kong to whom Mitsui could deliver container MOEU0108835?
3. Did Bridgewater ever "arrange authorization" for the shipment of container MOEU0717549 from Xingang to Hong Kong?


Clay G. Guthridge
Administrative Law Judge

Taylor's Resources Inc (USA) d/b/a Bridgewater Landing Inc (USA) v. Mitsui O.S.K. Lines Ltd.,
FMC No. 1954(F).

OALJ Exhibit ALPHA

Emails with the subject "long stay b/l 26005510205 /26005541206" have been compiled in chronological order by Office of Administrative Law Judges. The email are found in the appendix filed by respondent Mitsui O.S.K. Lines Ltd. on September 12, 2016.

From: bridgewater777@aol.com [mailto:bridgewater777@aol.com] **[found on page MOL-036]**
Sent: Tuesday, May 28, 2013 3:52 PM
To: Toukta Phonharath - USCHIDOCEP
Cc: Tony Lucas - USNYCSLS; Andrew Thorning - USNYCSLSSU; jk@taylorsresources.com
Subject: long stay b/l 26005510205 /26005541206

Dear Toukta,

As you are probably aware there is great confusion in the China plastic scrap market due to the operation Green Fence policy enacted by the Chinese government. Our original consignee for this shipment has indicated material may not clear customs in Xingang. Every day this container collects more and more detention charges. We have another consignee lined up to take this container in Hong Kong and are requesting an economical rate so material may be unloaded from the container and MOL can have its container back. Can you help us.

Best Regards

Kerri Keith

Bridgewater Landing Inc.

Tel: 801-554-8703

From: Tony.Lucas <Tony.Lucas@mol-liner.com> **[found on page MOL-035]**
To: bridgewater777 <bridgewater777@aol.com>; Toukta.Phonharath
<Toukta.Phonharath@mol-liner.com>
Cc: Andrew.Thorning <Andrew.Thorning@mol-liner.com>; jk <jk@taylorsresources.com>
Sent: Wed, May 29, 2013 12:10 pm
Subject: RE: long stay b/l 26005510205 /26005541206

Dear Keith,

It looks like we are unable to carry China/Hong Kong coastal cargo as we do not have the operation rights. Perhaps an alternate country? but otherwise would suggest to strip the cntr as soon as possible.

Best regards,

Tony Lucas

MOL America Inc.

Tel 732-512-5212

Fax 732-512-5272

E-mail : Tony.lucas@mol-liner.com

From: bridgewater777@aol.com [mailto:bridgewater777@aol.com] [found on page MOL-035]

Sent: Wednesday, May 29, 2013 2:32 PM

To: Tony Lucas - USNYCSLS; Toukta Phonharath - USCHIDOCEP

Cc: Andrew Thorning - USNYCSLSSU; jk@taylorresources.com

Subject: Re: long stay b/l 26005510205 /26005541206

Dear Tony,

We are a little confused, does not MOL have service from Xingang to Honk Kong via Busan ? This is how we would like to move the material from Xingang to Hong Kong. It is not practical to de-van this material and transload into another shipping lines container. Please advise any other suggestion besides to de van the material or shipping it outside of China.

Best Regards

Kerri Keith

Bridgewater Landing Inc

Tel: 801-554-8703

Fax: 732-865-7111

From: Tony Lucas - USNYCSLS

[found on page MOL-035]

Sent: Wednesday, May 29, 2013 4:56 PM

To: bridgewater777@aol.com; Toukta Phonharath - USCHIDOCEP

Cc: Andrew Thorning - USNYCSLSSU; jk@taylorresources.com

Subject: RE: long stay b/l 26005510205 /26005541206

Hi Keith,

I know we have the ability to move it but when asked for a rate was told we cannot legally do it. I don't know if moving it to Busan or any other country first would make it legal? no problem asking again, but if Hong Kong is your only option I don't think there's anything else we can suggest other than to strip the cntr as soon as possible.

Best regards,

Tony

From: jk [mailto:jk@taylorresources.com]

[found on page MOL-045]

Sent: Thursday, May 30, 2013 2:48 PM

To: 'John Herbst'

Subject: FW: long stay b/l 26005510205 /26005541206

From: Tony Lucas - USNYCSLS

Sent: Thursday, May 30, 2013 8:28 AM

To: bridgewater777@aol.com; Toukta Phonharath - USCHIDOCEP

Cc: Andrew Thorning - USNYCSLSSU; jk@taylorresources.com

Subject: RE: long stay b/l 26005510205 /26005541206

Dear Keith,

Over Busan can be done, pls let us know: Ex Xingang to Hong kong, via Busan transshipment USD1180/45', Subj to Dest THC, DOC Fees.

Best regards,

Tony

From: John Herbst [mailto:John@taylorsresources.com]
Sent: Thursday, May 30, 2013 2:59 PM
To: Tony Lucas - USNYCSLS
Cc: jk@taylorsresources.com
Subject: FW: long stay b/l 26005510205 /26005541206

[found on page MOL-045]

Dear Tony,

Thank you, over to Busan and then to Hong Kong would be good. Please confirm rate is US\$1180 Per 45 Ctr each, DTHC Cost US\$355 Total and Doc Fee US\$50.00, Both containers are to be on the same B/L. Please advise dollar amount of any other fees and total so we can arrange authorization.

Best Regards

John Herbst

Taylors Resources Inc

PH: 908-668-4735 X 404

From: Tony Lucas - USNYCSLS
Sent: Friday, May 31, 2013 10:38 AM
To: John Herbst

[found on page MOL-045]

Cc: jk@taylorsresources.com; Andrew Thorning - USNYCSLSSU
Subject: RE: long stay b/l 26005510205 /26005541206

Hi John,

This covers freight cost, but there may be other costs related to demurrage I can check on that for you and try to keep this to a minimum to get it moving.

Best regards,

Tony

From: John Herbst [mailto:John@taylorsresources.com]
Sent: Friday, May 31, 2013 11:14 AM
To: Tony Lucas - USNYCSLS
Cc: jk@taylorsresources.com; Andrew Thorning - USNYCSLSSU
Subject: RE: long stay b/l 26005510205 /26005541206

[found on page MOL-050]

Dear Tony,

Thank you for all your great help, please come back to us with the other costs ASAP so we can get this thing moving.

Best Regards

John Herbst

Taylors Resources Inc

PH: 908-668-4735 X 404

From: Tony Lucas - USNYCSLS

[found on page MOL-050]

Sent: Wednesday, June 05, 2013 9:01 AM

To: John Herbst

Cc: jk@taylorsresources.com; Andrew Thorning - USNYCSLSSU

Subject: RE: long stay b/l 26005510205 /26005541206

John,

To MOL the only additional cost would be cntr detention :

26005510205: RMB37500

26005541206: RMB12300

Best regards,

Tony Lucas

MOL America Inc.

Tel 732-512-5212

Fax 732-512-5272

E-mail : Tony.lucas@mol-liner.com